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The First 72 Hours After Arrest

What to do, in order, when someone you love has just been arrested.

Someone you care about has been arrested. You are frightened and you want to help, but you do not know what to do first. This guide walks you through the first three days in the order things actually happen. Read the part you are in. Come back for the next part when you get there.

One rule above all others: the person in custody should say as little as possible to anyone except their own lawyer. Not to police, not to a cellmate, not on the recorded jail phone line. You cannot control what they say, but you can tell them this the first time you speak.

Hour 0 to 6: Find them and stop the talking

- ☐ Locate the person. Call the arresting agency or search the county jail inmate lookup online. Write down the booking number.
- ☐ Note the exact agency that made the arrest: city police, county sheriff, state, or federal. This decides almost everything that follows.
- ☐ Assume every jail phone call is recorded. Do not discuss the facts of the case on that line. Ever.
- ☐ Write down the time of arrest and what you were told, word for word, while it is fresh.

Hour 6 to 24: Lawyer and the money question

- ☐ Decide: private attorney or public defender. If you cannot afford private counsel, a public defender is appointed at the first court appearance. Public defenders are real lawyers, often very experienced, and stretched thin.
- ☐ If hiring private, call defense attorneys now. Ask what they charge and what the fee covers. Do not put case facts in a voicemail.
- ☐ Find out if there is a bond or bail amount yet. Sometimes it is set at booking, sometimes not until the first hearing.
- ☐ Do not post bail through the first bondsman you find without understanding the fee. It is usually nonrefundable.

Hour 24 to 48: The first court appearance

- ☐ Find the date and time of the first appearance (arraignment or initial appearance). Ask the jail or the court clerk.
- ☐ This is usually when charges are read and bail is addressed. It is often short.
- ☐ If a lawyer is retained, they should appear or arrange coverage. If not, this is where a public defender is typically appointed.
- ☐ Family does not speak for the defendant. The lawyer does.

Hour 48 to 72: Steady the ground

- ☐ Set up an approved way to add money to the commissary and phone account if the person will be held.
- ☐ Gather documents the lawyer may need: employment, address history, anything showing ties to the community.
- ☐ Protect the person's job and home quietly. A missed shift or unpaid rent becomes a second crisis fast.
- ☐ Tell only who needs to know. What you say now can travel.

The things people wish they had known

- The recorded jail line has sunk more cases than almost anything else. Say it twice if you have to.
- Do not talk to police to clear things up. That is the lawyer's job, and helpfulness gets used against people.
- Slow is fine. Very little in the first 72 hours cannot wait for the lawyer. Panic causes the real mistakes.

Notes and numbers

Booking number: _____

Arresting agency: _____

Attorney name and number: _____

First court date and location: _____

Bail / bond amount: _____

This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.

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